

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER 		PAGE 1 OF 30			
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER 1333MF26Q0029		
6. SOLICITATION ISSUE DATE 04/29/2026		7. FOR SOLICITATION INFORMATION CALL: a. NAME JASON JENKS			
b. TELEPHONE NUMBER (No collect calls)		8. OFFER DUE DATE/ LOCAL TIME 05/14/2026 1600 ED			
9. ISSUED BY NMFS Field Delegates 601 EAST 12TH STREET SUITE 1746 KANSAS CITY MO 64106		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00% FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ECONOMICALLY DISADVANTAGED 811310 ☐ SERVICE-DISABLED VETERAN-OWNED WOMEN-OWNED SMALL BUSINESS (EDWOSB) 8(A) \$12.5 ☐ SMALL BUSINESS (SDVOSB)			
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING 14. METHOD OF SOLICITATION REQUEST ☒ FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)		
15. DELIVER TO CODE		16. ADMINISTERED BY CODE NMFS - FD NMFS Field Delegates 601 EAST 12TH STREET SUITE 1746 KANSAS CITY MO 64106			
17a. CONTRACTOR/ OFFEROR CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY CODE			
TELEPHONE NUMBER					
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	NOTICE: THE GOVERNMENT DOES NOT ACCEPT RESPONSIBILITY FOR NON-RECEIPT OF QUOTES. IT IS THE CONTRACTOR'S RESPONSIBILITY TO REQUEST A CONFIRMATION OF THE QUOTE RECEIPT. Continued... (Use Reverse and/or Attach Additional Sheets as Necessary)				
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Government Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ☐ ARE ☒ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)		
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED
			JASON JENKS		

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	OFFEROR MAY SUBMIT THE QUOTE ON THIS SF-18 FORM OR THEIR OWN COMPANY FORM. QUOTES WILL BE EVALUATED BASED ON (RFO 52.212-2) IN ATTACHED CLAUSES & PROVISIONS. VENDORS WHO DO NOT PROVIDE ALL EVALUATION CRITERIA WILL NOT BE ACCEPTED. THE OFFEROR MUST BE CURRENTLY REGISTERED IN THE SYSTEM FOR AWARD MANAGEMENT (SAM) TO BE ELIGIBLE FOR AN AWARD. QUOTES RECEIVED FROM CONTRACTORS WHO ARE NOT ACTIVE IN SAM WILL NOT BE CONSIDERED. Services, non-personal, to provide biannual forklift maintenance on seven (7) units - six (6) forklifts and one electric street sweeper. Attendance to include two (2) preventative maintenance services per year and safety inspections. See Statement of Work for complete details. Period of Performance: 06/01/2026 - 05/30/2027. Product and service code: J039 Product/Service Code: J039 Continued...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

40. PAID BY

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0002	Period of Performance: 06/01/2026 to 05/31/2027 Repairs to forklifts and electric street sweeper under Conditions Found Report - CFR shall be issued to requesting official and contracting officer. CFR to include description of repairs needed, photos of broken/damaged equipment, and quotes for repairs listed. Repairs to proceed after evaluation by requesting official and concurrence from contracting officer or contracting officer's representative. Product/Service Code: J039				
0003	Option Year One - Services, non-personal, to provide biannual forklift maintenance on seven (7) units - six (6) forklifts and one electric street sweeper. Attendance to include two (2) preventative maintenance services per year and safety inspections. See Statement of Work for complete details. Period of Performance: 06/01/2027 - 05/30/2028. Product and service code: J039 (Option Line Item) Anticipated Exercise Date: 04/30/2027 Product/Service Code: J039				
0004	Period of Performance: 06/01/2027 to 05/31/2028 Option Year One - Repairs to forklifts and electric street sweeper under Conditions Found Report - CFR shall be issued to requesting official and contracting officer. CFR to include description of repairs needed, photos of broken/damaged equipment, and quotes for repairs listed. Continued...				

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0005	Repairs to proceed after evaluation by requesting official and concurrence from contracting officer or contracting officer's representative. (Option Line Item) Anticipated Exercise Date: 04/30/2027 Product/Service Code: J039 Option Year Two - Services, non-personal, to provide biannual forklift maintenance on seven (7) units - six (6) forklifts and one electric street sweeper. Attendance to include two (2) preventative maintenance services per year and safety inspections. See Statement of Work for complete details. Period of Performance: 06/01/2028 - 05/30/2029. Product and service code: J039 (Option Line Item) Anticipated Exercise Date: 04/30/2028 Product/Service Code: J039 Period of Performance: 06/01/2028 to 05/31/2029				
0006	Option Year Two - Repairs to forklifts and electric street sweeper under Conditions Found Report - CFR shall be issued to requesting official and contracting officer. CFR to include description of repairs needed, photos of broken/damaged equipment, and quotes for repairs listed. Repairs to proceed after evaluation by requesting official and concurrence from contracting officer or contracting officer's representative. (Option Line Item) Anticipated Exercise Date: 04/30/2028 Product/Service Code: J039				

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Section II - Supplies or Services and Price/Costs

CLIN List

Item Number	Description	Quantity	Unit	Unit Price	Amount
0001	Services, non-personal, to provide biannual forklift maintenance on seven (7) units - six (6) forklifts and one electric street sweeper. Attendance to include two (2) preventative maintenance services per year and safety inspections. See Statement of Work for complete details. Period of Performance: 06/01/2026 - 05/30/2027. Product and service code: J039 Award Type: Firm-fixed-price Product/Service Code: J039 Period of Performance: 06/01/2026 to 05/31/2027				
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Item Number	Description	Quantity	Unit	Unit Price	Amount
0004	05/30/2028. Product and service code: J039 Award Type: Firm-fixed-price (Option Line Item) Anticipated Exercise Date: 04/30/2027 Product/Service Code: J039 Period of Performance: 06/01/2027 to 05/31/2028 Option Year One - Repairs to forklifts and electric street sweeper under Conditions Found Report - CFR shall be issued to requesting official and contracting officer. CFR to include description of repairs needed, photos of broken/damaged equipment, and quotes for repairs listed. Repairs to proceed after evaluation by requesting official and concurrence from contracting officer or contracting officer's representative. Award Type: Firm-fixed-price (Option Line Item) Anticipated Exercise Date: 04/30/2027 Product/Service Code: J039				
0005	Option Year Two - Services, non-personal, to provide biannual forklift maintenance on seven (7) units - six (6) forklifts and one electric street sweeper. Attendance to include two (2) preventative maintenance services per year and safety inspections. See Statement of Work for complete details. Period of Performance: 06/01/2028 - 05/30/2029. Product and service code: J039 Award Type: Firm-fixed-price (Option Line Item)				

Item Number	Description	Quantity	Unit	Unit Price	Amount
0006	Anticipated Exercise Date: 04/30/2028 Product/Service Code: J039 Period of Performance: 06/01/2028 to 05/31/2029 Option Year Two - Repairs to forklifts and electric street sweeper under Conditions Found Report - CFR shall be issued to requesting official and contracting officer. CFR to include description of repairs needed, photos of broken/damaged equipment, and quotes for repairs listed. Repairs to proceed after evaluation by requesting official and concurrence from contracting officer or contracting officer's representative. Award Type: Firm-fixed-price (Option Line Item) Anticipated Exercise Date: 04/30/2028 Product/Service Code: J039				

SOW Statement of Work

PURPOSE:

The AFSC/RACE Division owns several forklifts and material handling machines that require routine maintenance and servicing, and occasional repairs. The purpose of this action is to provide maintenance and service for all RACE forklifts (and one sweeper) to obtain inspection and repair services when needed. We require preventative maintenance/minor repairs and occasional major repairs. Major repairs will be authorized by the contracting officer via separate task order.

TECHNICAL SPECIFICATIONS: Preventative Maintenance (PM) will be performed in accordance with this Statement of Work (SOW) and the OEM Preventive Maintenance Table/OEM Maintenance Manual. Periodicity will be per usage hours identified in the OEM manual and include at least two (2) PMs bi-annually per unit. The contractor shall provide a repair summary, cost estimate (including any anticipated transportation costs), and completion time estimate in accordance with the delivery schedule detailed below for any unscheduled repairs discovered during the PM. We request during the first PM service that the vendor issue a condition found report for repair needs within 15 business days of first service.

During PMs, the contractor shall perform a technical inspection of identified units as soon as scheduling permits. Each inspection will include on-site troubleshooting and minor repairs listed under the minor repairs section. Upon completion of the inspection, the contractor shall provide an inspection report with recommended major repairs and any associated cost estimate within five (5) business days, as

shown in the deliverables schedule section of the SOW. If replacement parts fail by no fault of the contractor, a modification will be issued for correction. If a replacement part fails by the contractor's error, repair will be made at no cost to the Government. Major repairs will be authorized by the Contracting Officer before work can begin.

The Contractor shall perform minor repairs identified during PM or during an inspection. Major repairs are subject to the requirements of Government Furnished Property (GFP) if forklifts require repair at the contractor's facility. The Contractor shall provide transportation of forklifts as required to perform repairs.

Deliverables request for PM inspections of trucks.

GAS-POWERED EQUIPMENT

- Blow out radiator core and clean machine with compressed air.
- Clean grease fittings and lubricate.
- Fill clutch release bearing grease cup.
- Lubricate distributor, generator.
- Change engine oil and filter element.
- Check transmission and differential oil; fill if necessary.
- Clean air cleaner, inspect hose and connections.
- Check upright assembly for proper adjustment and lubrication.
- Check battery; add water and clean terminals.
- Check hydraulic sump filler cap; clean or replace if necessary.
- Check hydraulic oil level, fill if necessary.
- Check and lubricate all connecting shafts and levers.
- Check steering box level, fill if necessary.
- Check power steering oil level; fill if necessary.
- Check power steering for proper adjustment.
- Clean protecto-seal gas filler cap; inspect for proper installation.
- Check fuel, oil, and water systems for leaks. Check radiator for proper level.
- Inspect clutch pedal and linkage for proper adjustment.
- Inspect brake pedal linkage for proper adjustment.
- Check master cylinder, fill it if necessary.
- Check engine vent pipe.
- Check all accessory drive belts for proper tension.
- Check carburetor and accelerator linkage including choke control.
- Check distributor points for adjustment and condition.
- Inspect spark plugs and ignition wiring.
- Inspect lift and tilt cylinders for leaks.
- Check tilt cylinder rod ends and anchors; adjust and tighten as necessary.
- Operational check and physical inspection of machine.

ELECTRIC-POWERED EQUIPMENT

- Clean machine (compressed air).
- Clean grease fittings and lubricate
- Check upright assembly for proper adjustment and lubrication.
- Check hydraulic sump filler cap; clean or replace if necessary.

- Check hydraulic oil level, fill if necessary.
- Check and lubricate all connecting shafts and levers.
- Check steering gear box level, fill if necessary.
- Check power steering for proper operation and adjustment.
- Check differential oil level, fill if necessary.
- Inspect lift and tilt cylinders for leaks.
- Inspect brake pedal linkage for proper adjustment.
- Inspect battery, check water level.
- Check cables and receptacles.
- Check contactor assembly and all switches for proper operation.
- Check tilt cylinder rod ends and anchors; adjust and tighten as necessary.
- Operational check and physical inspection of machine.

All inspections and services must be conducted by a certified lift truck technician on location at Buildings #4 & #32 located at 7600 Sand Point Way NE Seattle, WA 98115. The vendor will be required to maintain inspection and maintenance records during the period of performance. The vendor will also be required to supply AFSC with all maintenance and repair records 15 business days after completion of services.

The forklifts and equipment covered under this SOW are:

Product Description	Manufacturer	Model
Street Sweeper	Gansow	1202 Electric
4000lb Forklift	Yale	EO Electric SN# A839DO2110U
5500lb Forklift	Hyster	H55XM LPG SN# H177B38502Z
5000lb Forklift	Hyster	H50XM LPG SN# H177B52279B
8000lb Forklift	Doosan	G35S-7 LPG SN# FGB0R-3460-00283
4000lb Forklift	Clark	TMX20 Electric SN# TM247-0331-9340EB
8000lb Forklift	Caterpillar	M80B Electric SN# 2HB00509

PM and Major service consumables:

This contract is to provide inspection services and minor maintenance consumables associated with repetitive use in nature associated with equipment. The following items listed will be classified as consumables and will be included in each service interval:

- Light bulbs in running lights if applicable
- Misc. oils & Grease
- Filters
- Fuses
- Common fluids (engine oil, coolant, brake fluid)
- Rags/shop towels

Major Repairs

If major repairs are needed, we request the vendor to provide a written cost estimate and detailed

description of services and parts needed to conduct the repair. Issuance of a CFR does not constitute task order. Task orders for repairs must be issued by the KO and notice to proceed shall be issued prior to performance. Classification of major repairs is as follows:

- Tires
- Hydraulic cylinder seals/rebuilding or replacement
- engine overhaul
- any brake component failure outside of brake pads
- any required repairs to the truck/lift tower
- battery pack replacement for battery operated forklift trucks
- drive belts
- cooling system hoses
- hydraulic hoses
- wear pads
- brake shoes
- ignition wiring/distributor/spark plugs
- fuel hoses
- battery replacement for gas powered forklift trucks
- any repairs not covered by minor repairs and PM services.

REPAIR and PM REQUIREMENTS

All repairs conducted on forklift trucks must be completed to OEM standard operating conditions. All repairs must be completed to operational conditions in accordance with original manufacturer design specifications. Vendors will be required to provide a detailed quote of parts and labor to conduct repairs to achieve specifications within that repair service for authorization. The vendor will assume responsibility for proper disposal of any consumables (including fluids), used filters, or faulty parts associated with services conducted.

REQUESTED DELIVERY DATE / PERIOD OF PERFORMANCE:

Period of performance for PM and repairs, we are requesting to establish a one-year contract with two option years for a total of three (3) years. Year #1 date will start when the contract is established and followed in one-year sequential dates from initial period.

PM & Repairs

Base year starting 06/01/2026 to 05/31/2027

Option year #1 06/01/2027 to 05/31/2028

Option year #2 06/01/2028 to 05/31/2029

Deliverables

- All PM services are to be performed in 180-day cycles starting when the contract is established.
- All PM inspection reports with detailed information on services and minor repairs performed delivered within 15 business days
- Condition found report delivered 10 business days after first preliminary inspection
- Major repairs quote submitted within five (5) business days of inspection
- All parts used must meet OSHA reg 1910.178(q)(5) all replacement parts must be the equivalent as to safety of the original manufacturer's manual design
- Repairs completed must meet OEM standards and operational requirements per repair agreement.

1333MF26Q0029 BASE

SHIPPING ADDRESS:

7600 Sand Point Way NE
Seattle, Washington 98115

Section III - Description/Specifications

CSS Combined Synopsis-Solicitation

COMBINED SYNOPSIS/SOLICITATION

NMFS RACE Net Loft – Lift Truck and Sweeper Maintenance Services

(i) This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation 1333MF26Q0029 is issued as a request for quotation (RFQ), for lift truck & street sweeper preventative maintenance and repair services at the RACE Net Loft in Seattle, WA.

This acquisition is set-aside for small business concerns. The associated NAICS code is 811310. The small business size standard is \$12.5m in average annual receipts or less.

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

(ii) A list of line-item number(s) and items, quantities, and units of measure (including option(s), if applicable).

(Service) CLIN 0001 – Base Year

Services, non-personal, to provide biannual forklift maintenance on seven (7) units - six (6) forklifts and one electric street sweeper. Attendance to include two (2) preventative maintenance services per year and safety inspections. See Statement of Work for complete details.

Period of Performance: 06/01/2026 - 05/30/2027 (base year).

(Supply) CLIN 0002 – Base Year

Repairs to forklifts and electric street sweeper under Conditions Found Report - CFR shall be issued to requesting official and contracting officer. CFR to include description of repairs needed, photos of broken/damaged equipment, and quotes for repairs listed. Repairs to proceed after evaluation by requesting official and concurrence from contracting officer or contracting officer's representative.

(Service) CLIN 0003 – Option Year 1

Services, non-personal, to provide biannual forklift maintenance on seven (7) units - six (6) forklifts and one electric street sweeper. Attendance to include two (2) preventative maintenance services per year and safety inspections. See Statement of Work for complete details.

Period of Performance: 06/01/2027 - 05/30/2028 (Option Year 1)

(Supply) CLIN 0004 – Option Year 1

Repairs to forklifts and electric street sweeper under Conditions Found Report - CFR shall be issued to requesting official and contracting officer. CFR to include description of repairs needed, photos of

broken/damaged equipment, and quotes for repairs listed. Repairs to proceed after evaluation by requesting official and concurrence from contracting officer or contracting officer's representative.

(Service) CLIN 0005 – Option Year Two

Services, non-personal, to provide biannual forklift maintenance on seven (7) units - six (6) forklifts and one electric street sweeper. Attendance to include two (2) preventative maintenance services per year and safety inspections. See Statement of Work for complete details.

Period of Performance: 06/01/2028 - 05/30/2029 (Option Year Two)

(Supply) CLIN 0006 – Option Year Two

Repairs to forklifts and electric street sweeper under Conditions Found Report - CFR shall be issued to requesting official and contracting officer. CFR to include description of repairs needed, photos of broken/damaged equipment, and quotes for repairs listed. Repairs to proceed after evaluation by requesting official and concurrence from contracting officer or contracting officer's representative.

See attached Statement of Work which applies to Base Year and Option Years 1 – 2, and Department of Labor Wage Rates: WD 2015-5535, Revision No. 27, dated 12/03/2025, which can be found on:

<https://sam.gov/content/wage-determinations>

INVOICES TO BE BILLED MONTHLY (OR PERIODICALLY, AS ARRANGED) IN ARREARS VIA IPP. PROVIDE MONTHLY AND ANNUAL PRICING FOR EACH BASE AND OPTION YEAR. QUOTE PRICING MAY BE PROVIDED ON ATTACHED SF18 FORM OR ON COMPANY LETTERHEAD.

(v) A list of solicitation provisions that apply to the acquisition (see 12.205(a)) can be found on the Request for Quote Form SF18 attachment.

RFO 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023) (Deviation Jan 2026)

NOTICE TO OFFERORS: Instructions for submitting quotations under this request for quote must be followed. Failure to provide all information to aid in the evaluation may be considered non-responsive. Offers that are non-responsive may be excluded from further evaluation and rejected without further notification to the offeror.

1. Submit PDF or Microsoft Word format quotations to the office specified in this solicitation at or before the time specified in the solicitation. Quote documents shall include signed copies of the SF-18 and SF 30(s) to acknowledge the solicitation and any applicable amendments. Email quotes are required and can be sent to: jason.jenks@noaa.gov.
2. Offeror shall have an active registration in the System for Award Management (SAM found at <https://sam.gov/content/home>) in order to provide a quote and be eligible for award. Must provide their UEID/CAGE CODE with their quote.
3. Offerors shall assume that the Government has no prior knowledge of them or their capability.
4. Offerors must provide all evaluation criteria in accordance with RFO 52.212-2. Offerors who do not provide all evaluation criteria may not be considered.

RFO 52.212-2 Evaluation- Commercial Products and Commercial Services (Nov 2021) (Deviation Jan

2026)

Offers will be evaluated based on price and the factors set forth in paragraph (a).

The evaluation will consider the Non-Price Technical Solution (Technical Approach and Past Performance) to be significantly more important than price. However, as quotes are determined to be more equal in the non-price evaluation factor, price becomes more important and may become the determining factor for award. If, at any stage of the evaluation, all vendors are determined to have submitted equal, or virtually equal, Non-Price Technical Solutions, price could become the factor in determining which vendor will receive the award.

The Government intends to evaluate the quotes and award a purchase order based on the Offeror's initial quote; therefore, the Offeror's initial quote should contain the Offeror's best terms from a Non-Price Technical Solution and price standpoint.

The Government reserves the right not to award a purchase order depending on the quality of the quote(s) submitted and the availability of funds. Furthermore, the Government may waive informalities and minor irregularities or omissions in quotes received.

The Government may make an award to other than the lowest-priced Offeror or the Offeror with the highest technical rating if the Contracting Officer determines that to do so would result in the best value to the Government. The Government will not make an award at a significantly higher overall price to achieve only slightly superior performance capability.

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

Paragraph (a) is hereby completed as follows: Evaluation will be based on the following:

1. **Technical Approach and Capability.**

The Offeror's overall technical approach will be evaluated to assess the Government's level of confidence in the Offeror's understanding of, approach to, and ability to successfully perform the requirements as described in the Statement of Work. Provide a detailed description of the company's experience performing similar services. A detailed technical approach write-up describing how the Offeror will perform this service is required to be submitted with the quote regardless of whether a site visit was made or not. The technical approach write-up must not be a reiteration of the Statement of Work, but how your company plans on performing the tasks listed in the attached Statement of Work. (i.e. performance checklists, anticipated number of employees, anticipated hours at the facility and/or confirmation of supplies being provided, etc.)

2. **Past Performance.**

Quote shall include at least **two** references from at least **two separate contracts for similar and relevant recent services within the past two years** including the name, phone number, full address, and e-mail address of the reference to demonstrate the **offeror's** capability to successfully perform the services listed in the Statement of Work.

The offeror is required to fill out blocks 1-4 and send the attached Past Performance Questionnaire to the references provided by the offeror in their submission. The references

should complete the Past Performance Questionnaire and then email it directly to (CS/CO email) by the closing date and time of this solicitation. The Government reserves the right to consider past performance report forms received after the due date and time of the solicitation, past performance questionnaires submitted from previous solicitations, and to contact references for verification or additional information.

The Offeror's past performance on related contracts will be evaluated to determine, as appropriate, successful performance of contract requirements, quality and timeliness of delivery of goods and services, cost management, communications between contracting parties, proactive management and customer satisfaction. The Government will use its discretion to determine the sources of past performance information used in the evaluation, and the information may be obtained from references provided by the Offeror, the agency's knowledge of Offeror performance, other government agencies or commercial entities, or past performance databases, and will be based on responsiveness, quality, and customer services.

Offerors lacking relevant past performance history, or for whom past performance information is either not available or has not been submitted to the Government, will receive a neutral rating for past performance. A good past performance rating provides higher confidence than a neutral or satisfactory rating.

3. Price.

The Government will evaluate the price quote for completeness and reasonableness in relation to the RFQ requirements. Quoted prices must be entirely compatible with the Non-Price Technical Solution.

4. Any additional qualifications/licenses required by the program.

5. Warranty above and beyond the standard.

6. Delivery/Period of Performance considerations.

The Government intends to award a trade-off, single OR multiple firm fixed-price purchase order on an all or none basis OR all or some basis with payment terms of Net 30.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award. (End of provision)

(vi) A list of contract clauses that apply to the acquisition (see 12.205(b)) can be found on the Request for Quote Form SF18 attachment.

(vii) Quotes are required to be received in the contracting office no later than 1600 EST/EDT on 05/14/2026. All quotes may be submitted electronically via email to jason.jenks@noaa.gov or via Fedconnect.

THE GOVERNMENT DOES NOT ACCEPT RESPONSIBILITY FOR NON-RECEIPT OF QUOTES. IT IS THE CONTRACTOR'S RESPONSIBILITY TO REQUEST AND RECEIVE CONFIRMATION OF THE QUOTE RECEIPT.

(viii) See attached terms and conditions in the solicitation document.

Per NOAA Deviation 2025-02/03: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Contracting officers will not consider those representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

Section IX - Contract Clauses

Clauses Incorporated by Reference

Clause Number	Clause Title
52.203-17	Contractor Employee Whistleblower Rights. (NOV 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)
52.204-7	System for Award Management. (NOV 2024)
52.204-13	System for Award Management Maintenance. (OCT 2018)
52.204-16	Commercial and Government Entity Code Reporting. (AUG 2020)
52.204-17	Ownership or Control of Offeror. (AUG 2020)
52.204-18	Commercial and Government Entity Code Maintenance. (AUG 2020)
52.209-2	Prohibition on Contracting With Inverted Domestic Corporations-Representation. (NOV 2015) (Deviation JAN 2026)
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (NOV 2015) (Deviation JAN 2026)
52.212-1	Instructions to Offerors - Commercial Products and Commercial Services. (SEP 2023)
52.212-4	Contract Terms and Conditions - Commercial Products and Commercial Services. (NOV 2023)
52.217-5	Evaluation of Options. (JUL 1990)
52.219-28	Postaward Small Business Program Rerepresentation. (JAN 2025) (Deviation JAN 2026)
52.222-3	Convict Labor. (JUN 2003)
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (JAN 2025) (Deviation JAN 2026)
52.222-41	Service Contract Labor Standards. (AUG 2018)
52.222-50	Combating Trafficking in Persons. (OCT 2025) (Deviation JAN 2026)
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (JAN 2022)
52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving. (MAY 2024)
52.232-33	Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)
52.232-39	Unenforceability of Unauthorized Obligations. (JUN 2013)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors. (MAR 2023)
52.233-3	Protest after Award. (AUG 1996) (Deviation JAN 2026)
52.233-4	Applicable Law for Breach of Contract Claim. (OCT 2004) (Deviation JAN 2026)
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation JAN 2026)
52.240-91	Security Prohibitions and Exclusions. (Deviation JAN 2026)

Clause Number	Clause Title
52.249-4	Termination for Convenience of the Government (Services) (Short Form). (APR 1984)
1352.201-70	Contracting Officer's Authority. (MAR 2010)
1352.209-73	Compliance with the laws. (APR 2010)
1352.209-74	Organizational conflict of interest. (APR 2010)

Standard Language UTILIZATION OF FEDCONNECT FOR CONTRACT ADMINISTRATION

The Department of Commerce will utilize the FedConnect® web portal in administering this award. The contractor must be registered in FedConnect® and have access to the FedConnect® website located at <https://www.fedconnect.net/Fedconnect/>. For assistance in registering or for other FedConnect® questions please call the FedConnect® Help Desk at (800) 899-6665 or email at support@fedconnect.net. There is no charge for registration in or use of FedConnect®.

FAR 52.217-8 Option To Extend Services. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

FAR 52.217-9 Option To Extend the Term of the Contract. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed three years.

(End of clause)

FAR 52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate

information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

(End of provision)

FAR 52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov

(End of clause)

FAR 52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any Commerce Acquisition Regulation (48 CFR chapter 1352) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

FAR 52.252-6 Authorized Deviations in Clauses. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any Commerce Acquisition Regulation (48 CFR 1352) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

CAR 1352.215-72 Inquiries. (APR 2010)

Offerors must submit all questions concerning this solicitation in writing to jason.jenks@noaa.gov. Questions should be received no later than 8 calendar days after the issuance date of this solicitation. Any responses to questions will be made in writing, without identification of the questioner, and will be included in an amendment to the solicitation. Even if provided in other form, only the question responses included in the amendment to the solicitation will govern performance of the contract.

(End of clause)

CAR 1352.233-70 Agency protests. (APR 2010)

(a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. See 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:
Jason Jenks
jason.jenks@noaa.gov

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following address: NOAA Field Delegate Program Manager
Brad Willis
bradley.willis@noaa.gov

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

CAR 1352.233-71 GAO and Court of Federal Claims protests. (APR 2010)

(a) A protest may be filed with either the Government Accountability Office (GAO) or the Court of Federal Claims unless an agency protest has been filed.

(b) A complete copy of all GAO or Court of Federal Claims protests, including all attachments, shall be served upon (i) the Contracting Officer, and (ii) the Contract Law Division of the Office of the General Counsel, within one day of filing a protest with either GAO or the Court of Federal Claims.

(c) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

CAR 1352.246-70 Place of acceptance. (APR 2010)

(a) The Contracting Officer or the duly authorized representative will accept supplies and services to be provided under this contract.

(b) The place of acceptance will be:

NOAA - Western Regional Center
RACE Net Loft
7600 Sand Point Way NE
Building 32
Seattle, WA 98115

(End of clause)

CAR 1352.270-70 Period of performance. (APR 2010)

(a) The base period of performance of this contract is from 06/01/2026 through 05/31/2027. If an option is exercised, the period of performance shall be extended through the end of that option period.

(b) The option periods that may be exercised are as follows:

Option year #1 06/01/2027 to 05/31/2028

Option year #2 06/01/2028 to 05/31/2029

(c) The notice requirements for unilateral exercise of option periods are set out in FAR 52.217-9.

(End of clause)

NOAA Acquisition Manual 1330-52.222-70 NOAA SEXUAL ASSAULT AND SEXUAL HARASSMENT PREVENTION AND RESPONSE POLICY (MAY 2018)

In accordance with NOAA Administrative Order (NAO) 202-1106, NOAA Sexual Assault and Sexual Harassment Prevention and Response Policy, it is the policy of NOAA to maintain a work environment free from sexual assault and sexual harassment. NOAA prohibits sexual assault and sexual harassment by or of any employee, supervisor, manager, contractor, vendor, affiliate, or other individual with whom NOAA employees come into contact by the virtue of their work for NOAA.

(a) Definitions.

Contractor Employees - The term "contractor employees," as used in this solicitation and contract language, refers to employees of the prime contractor or its subcontractors, affiliates, consultants, or team members.

Sexual Assault - The term sexual assault, as used in this solicitation and contract language, means any conduct proscribed by state or federal sexual abuse laws, including, but not limited to, those defined in chapter 109A of title 18 of the U.S. Code (sexual abuse), and assaults committed both by offenders who are strangers to the victim and by offenders who are known or related by blood or marriage to the victim.

Sexual Harassment - As defined by the Equal Employment Opportunity Commission, sexual harassment is a form of sex discrimination that violates Title VII of the Civil Rights Act of 1964. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature when any of the following are true:

- Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;
- Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual;
- The conduct unreasonably interferes with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

The main characteristics of sexual harassment are that the harasser's conduct is targeted against the recipient's sex, gender identity, or sexual orientation, and is unwelcome to the recipient. It may include, but is not limited to: offensive jokes, slurs, epithets or name calling, undue attention, physical assaults or threats, unwelcome touching or contact, intimidation, ridicule or mockery, insults or put-downs, constant or unwelcome questions about an individual's identity, and offensive objects or pictures.

(b) Requirements.

1. It is the responsibility of the contractor to ensure that contractor employees maintain the highest degree of conduct and standards in performance of the contract. In support of this, NOAA urges its contractors to develop and enforce comprehensive company policy addressing sexual assault and sexual harassment.
2. The contractor shall include wording substantially the same as this solicitation and contract language in every subcontract so that it is binding upon each subcontractor.
3. If a contractor employee observes or is the object of sexual assault or sexual harassment, he or she is highly encouraged to report the matter, as soon as possible, to their immediate supervisor, the COR, subset of the COR (e.g. Task Manager or Assistant COR), or contracting officer (CO) if a COR is not assigned to the contract. The contract employee may also contact the NOAA Civil Rights Office to obtain guidance on reporting instances of sexual assault or sexual harassment. If deemed necessary, the contractor employee may also report such instances to local law enforcement. In the case where the incident occurs while performing at a remote location, such as at sea or in the field (at a field camp or other isolated location) where the above referenced individuals are unavailable, the contractor employee should follow the reporting procedure set forth in NAO 202-1106, Section 6.07, Reporting from Remote Locations.
4. Swift reporting allows NOAA and the contractor to take the appropriate measures to ensure that offensive behavior stops and the complainants' needs are addressed.
5. The COR (if assigned), CO, and contractor, where applicable, will work together to ensure appropriate action is taken in accordance with applicable laws and regulations, contract terms and conditions, and the contractor's written policy (where applicable).
6. The contractor shall provide all contractor employees assigned to perform under this contract with mandatory sexual assault and sexual harassment prevention and response training in compliance with the requirements of NAO 202-1106, Section 5, Prevention Training and Awareness, as part of their initial in-processing and on an annual basis thereafter. The initial training shall be completed within 30 business days (30 unless a different number is inserted) of contract award or the date a contractor employee is assigned to perform under the contract, as applicable.

Evidence of initial training by name and date completed for each contractor employee, shall be submitted to the COR or contracting officer (if no COR assigned) within 10 business days of completion.

Evidence of annual training by name and date completed for each contractor employee shall be submitted to the COR or contracting officer (if no COR assigned) no later than March 1st of each calendar year of contract performance.

7. The mandatory sexual assault and sexual harassment training provided by the contractor shall include the required elements set forth by NOAA's Workplace Violence Program Manager. A link to the website including the required elements of the training is provided at

<https://www.noaa.gov/organization/acquisition-grants/noaa-workplace-harassment-training-for-contractors-and-financial>. The website will also provide training materials and resources to assist the contractor in conducting the training. The contractor may provide training that solely addresses the NOAA required elements or may supplement existing company sexual assault and sexual harassment training in a manner that ensures all of the elements are adequately addressed.

8. The required elements of the training and resources available to the contractor for the training may be updated by NOAA periodically. The contractor is responsible for monitoring the website and incorporating any changes to the NOAA required elements into the contractor provided training.

9. NOAA's Workplace Violence Program Manager, COR, or CO may periodically review the contractor's training outline to ensure all required elements are included and, if necessary, any appropriate adjustments are made to the training by the contractor.

10. Contractor employees performing on assignments in a remote location, such as at a field camp or other isolated locations, are subject to receiving the same briefing on the parameters of the order provided to NOAA employees as set forth in Section 6 of NAO 202-1106.

11. The contractor shall provide a copy of this solicitation and contract language and NAO 202-1106 to contractor employees.

(c) Sexual Assault/Sexual Harassment (SASH) Helpline.

For NOAA employees, affiliates, and contractors who have experienced sexual assault or sexual harassment, NOAA has established the NOAA Sexual Assault/Sexual Harassment (SASH) helpline. This helpline is designed to provide crisis intervention, referrals, and emotional support to those who are victims and/or survivors of sexual harassment or sexual assault within the workplace. Contractor employees may use the helpline to receive live, confidential, one-on-one support in an occurrence of sexual harassment or assault by a Federal Government employee.

All services are anonymous, secure, and available worldwide, 24 hours a day, seven days a week. The NOAA SASH helpline is accessible through a variety of channels, including:

- Phone: 1-866-288-6558
- Website & Online Chat: <https://www.noaasashhelpline.org/>
- Mobile App: NOAA SASH Helpline (available via iOS and Android App Stores)

- Text: (202) 335-0265

(d) Confidentiality.

Any party receiving information from the filing of a complaint alleging sexual assault or sexual harassment, or while performing an investigation into such a complaint, shall keep the information confidential. "Confidentiality" means that the information shall only be shared with others who have a need to know the information to conduct their official duties.

(e) Remedies.

In addition to other remedies available to the Government, contractor employee violations of Federal requirements (e.g., law, statutes, executive orders, code, rules, regulations) applicable to sexual assault and sexual harassment and/or failure to complete the mandatory training set forth in this solicitation and contract language, may result in:

1. Requiring the contractor to remove a contractor employee or employees from the performance of the contract;
2. Requiring the contractor to terminate a subcontract;
3. Suspension of contract payments until the Contractor has taken appropriate remedial action;
4. Termination of the contract for default or cause, in accordance with the termination clause of this contract;
5. Suspension or debarment; or
6. Other appropriate action.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is <https://www.ipp.gov>.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)).

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: See IPP.gov for invoice requirements.

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the

Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-70 CONTRACTOR COMMUNICATIONS

(a) A contractor employee shall be identified both by the individual's name and the contractor's name when:

- Included in NOAA's locator, and
- When submitting any type of electronic correspondence to any NOAA employee or stakeholder.

(b) Any written correspondence from a contractor or any contractor employee shall be printed on company/organization letterhead or otherwise clearly identify the sender as an employee of the company or organization and shall identify the contract number.

(c) Contractors and/or contractor employees shall clearly identify themselves as such in any verbal communications, whether in informal discussion or a formal meeting.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-71 NOAA GOVERNMENT-CONTRACTOR RELATIONS - NON-PERSONAL SERVICES CONTRACT (SEPT 2017)

(a) The Government and the contractor understand and agree that the services to be delivered under this contract by the contractor to the Government are non-personal services as defined in FAR Part 37, Service Contracting, and the parties recognize and agree that no employer-employee relationship exists or will exist under the contract between the Government and the contractor's personnel. It is, therefore, in the best interest of the Government to afford both parties an understanding of their respective obligations.

(b) Contractor personnel under this contract shall not:

1. Be placed in a position where they are under relatively continuous supervision and control of a Government employee.
2. Be placed in a position of command, supervision, administration, or control over Government personnel or over personnel of other contractors performing under other NOAA contracts.

(c) The services to be performed under this contract do not require the contractor or the contractor's personnel to exercise personal judgment and discretion on behalf of the Government. Rather, the contractor's personnel will act and exercise personal judgment and discretion on behalf of the contractor.

(d) Rules, regulations, directives, and requirements that are issued by the Department of Commerce and NOAA under its responsibility for good order, administration, and security are applicable to all personnel who enter the Government installation and facilities, who are provided access to Government systems,

or who travel on Government transportation. This is not to be construed or interpreted to establish any degree of Government control that is inconsistent with a non-personal services contract.

(e) Both parties are responsible for monitoring contract activities for indications of improper employee-employer relationships during performance. In the event a situation or occurrence takes place inconsistent with this contract language, the following applies:

1. The contractor shall notify the contracting officer in writing within 5 business days from the date of any situation or occurrence where the contractor considers specific contract activity to be inconsistent with the intent of this contract language. The notice must include the date, nature and circumstance of the situation or occurrence, the name, function and activity of each Government employee or contractor employee involved or knowledgeable about the situation or occurrence, provide any documents or the substance of any oral communications related to the activity, and an estimated date by which the Government is recommended to respond to the notice in order to minimize cost, delay, or disruption of performance.

2. The contracting officer will review the information provided by the contractor, obtain additional information (if needed), and respond in writing as soon as practicable after receipt of the notification from the contractor. The contracting officer's response will provide a decision on whether the contracting officer determines the situation or occurrence to be inconsistent with the intent of this contract language and, if deemed necessary, will specify any corrective action(s) to be taken in order to resolve the issue.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-72 CONTRACTOR ACCESS TO NOAA FACILITIES (SEPT 2017)

(a)

1. The performance of this contract requires employees of the prime contractor or its subcontractors, affiliates, consultants, or team members ("contractor employees") to have access to and to the extent authorized, mobility within, a NOAA facility.

2. NOAA may close and or otherwise deny contractor employees access to a NOAA facility for a portion of a business day or longer for various reasons including, but not limited to, the following events:

- i. Federal public holidays for Federal employees in accordance with 5 U.S.C. 6103;

- ii. Fires, floods, earthquakes, and unusually severe weather, including but not limited to snow storms, tornadoes, and hurricanes;

- iii. Occupational safety or health hazards;

- iv. Lapse in Appropriations; or

- v. Federal Statute, Executive Order, Presidential Proclamation, or any other unforeseen reason.

3. In such events, the contractor employees may be denied access to a NOAA facility that is ordinarily available for the contractor to perform work or make delivery, as required by the contract.

(b) In all instances where contractors are denied access or required to vacate a NOAA facility, in part or in whole, the contractor shall be responsible to ensure contractor personnel working under the contract comply. If the circumstances permit, the contracting officer will provide direction to the contractor, either directly or through the COR, which could include continuing on-site performance during the NOAA facility closure period; however, if Government oversight is required and is not available, on-site performance shall not be allowed. In the absence of such direction, the contractor shall exercise sound judgment to minimize unnecessary contract costs and performance impacts, for example, performing required work off- site if possible or reassigning personnel to other activities if appropriate.

(c) The contractor shall be responsible for monitoring the Office of Personnel Management at opm.gov, the local radio, television stations, NOAA web sites, and other communication channels. Once the facility is accessible, the contractor shall resume contract performance as required by the contract.

(d) For the period that NOAA facilities were not accessible to contractors who required access in order to perform the services, the contracting officer may—

1. Adjust the contract performance or delivery schedule for a period equivalent to the period the NOAA facility was not accessible;
2. Forego the work; or
3. Reschedule the work by mutual agreement of the parties.

(e) Notification procedures of a NOAA facility closure, including contractor denial of access, are as follows:

1. The contractor shall be responsible for notification of its employees of the NOAA facility closure to include denial of access to the NOAA facility. The dismissal of NOAA employees in accordance with statute and regulations providing for such dismissals shall not, in itself, equate to a NOAA facility closure in which contractors are denied access. Moreover, the leave status of NOAA employees shall not be conveyed or imputed to contractor personnel. Accordingly, unless a NOAA facility is closed and the contractor is denied access to the facility, the contractor shall continue performance in accordance with the contract.

2. Access to Government facilities and resources, including equipment and systems, will be limited and personnel necessary to administer contract performance may not be available. Generally, supply and service contracts that are funded beyond the date of the lapse in appropriation and do not require access to Government facilities, active administration by Government personnel or the use of Government resources in a manner that would cause the Government to incur additional obligations during the lapse in appropriation may continue. If a delivery date for a contract falls during the period of a lapse in appropriations, Government personnel may not be available to receive delivery. Contractors are directed to consult with a contracting officer before attempting to make a delivery. Contracting officers will be available throughout the lapse in appropriation period to provide guidance.

Once OMB guidance is given, CORs, in consultation with the contracting officer, will notify those contractors that are deemed by the Program Office to be performing excepted work and identify the contractor personnel requiring access to NOAA facilities. CORs will also coordinate directly with facility management or physical security personnel at respective locations to ensure that the names of

contractor personnel requiring access to Government facilities during the lapse in appropriations are provided to physical security personnel.

Contractors who are not designated as performing excepted work are not allowed access to Government facilities or to utilize Government resources in a manner that would incur any additional obligation of funding on behalf of the Government during the lapse in appropriation.

3. Unless otherwise specified within the contract award, contractors requiring access to NOAA facilities outside normal business hours or outside the normal workweek shall submit a written request in writing through the COR to the contracting officer. The written request shall provide justification supporting the required access and be submitted 72 hours/days (contracting officer insert number of days. If blank, 72 hours applies) before access to the NOAA facility is needed.

(End of solicitation and contract language)

RFO 52.222-42 Statement of Equivalent Rates for Federal Hires. (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It Is Not A Wage Determination

Employee class Monetary wage - Fringe benefits

Employee Class	Monetary Wage -- Fringe Benefits
23430 – Heavy Equipment Mechanic	WG-7 Step 2; \$04.98/hour

(End of clause)

Section X - List of Attachments

Attachment Number	Title
1	023 WDOL 2015-5535
2	023 WH-1313